



Notification Waiver Determination

SLR Consulting Australia - Spectrum Ecology & Spatial and Millcrest Environmental Technology

Acquisition	SLR Australia Pty Ltd (SLR) applied for a notification waiver in respect of its proposed acquisition of 100% of the issued share capital in each of Spectrum Ecology Pty Ltd (Spectrum) and Millcrest Technology Pty Ltd (Millcrest), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	31 August 2026

Parties to the Acquisition	The acquirer, SLR, supplies environmental consulting services in Australia to clients across the energy, finance, mining, infrastructure, manufacturing, and technology industries. Its services include strategic advisory, technical consulting and environmental, social, and governance advisory services, environmental risk assessments, impact assessments, engineering, scientific and technical services, ecological, efficient energy and water management services, and town planning and project management. Spectrum is a specialist environmental consultancy providing terrestrial ecological consulting services, primarily to the mining, infrastructure, energy, and government sectors. Its services include flora and vegetation surveys, fauna surveys, spatial ecology and geographic information system (GIS) analysis, remote sensing, rehabilitation monitoring, environmental impact assessments, and environmental compliance reporting. Millcrest supplies proprietary GIS and spatial analysis software, Tyton Ecological Intelligence (Tyton), which comprises TytonAI, an AI-powered vegetation classification software, and TytonIQ, a cloud-based environmental intelligence platform. Millcrest licenses the Tyton software to Spectrum and another independent consultancy based in Queensland. Tyton's main use cases are in the mining and resources sector.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given:

	a. there is limited horizontal overlap between SLR and Spectrum in the supply of environmental consulting services, as SLR is a multidisciplinary environmental consulting firm and Spectrum specialises in terrestrial ecology consulting services b. SLR's and Spectrum's combined shares of supply of environmental consulting services and terrestrial ecology consulting services nationally are estimated to be low, the increment in shares of supply arising from the Acquisition would be low, and there are alternative providers in Australia c. while there is a vertical relationship between the GIS and spatial analysis software supplied by Millcrest and the services supplied by SLR and Spectrum, there is low risk of foreclosure or other concerning vertical effects arising from the Acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**